Kentucky Case Law on Police Interrogation Tactics and Coercion: Comprehensive Research Report

Executive summary: Key findings and precedents

Kentucky courts have established important limitations on police interrogation tactics, with **several favorable precedents for defendants facing coercive tactics**. [Justia](https://www.justia.com/criminal/procedure/miranda-rights/custodial-interrogation/) [US Courts](https://www.uscourts.gov/educational-resources/educational-activities/facts-and-case-summary-jdb-v-north-carolina) Most significantly, the Kentucky Supreme Court in *Gray v. Commonwealth* (2016) created a presumption of unconstitutionality when police use fabricated evidence like fake DNA reports. [Justia +8](https://law.justia.com/cases/kentucky/supreme-court/1995/93-sc-618-dg-1.html) Federal courts in Kentucky have suppressed statements when officers told suspects they were "not under arrest" and conversations were "just talking" immediately before delivering Miranda warnings. [Findlaw +3](https://caselaw.findlaw.com/us-6th-circuit/1332728.html) However, **Kentucky courts have upheld confessions in cases involving CPS threats** when officers claim they were merely stating intended next steps professionally, [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html) and **limited published appellate authority exists** on several specific tactics including workplace interrogations leading to job loss and police lying about witness contacts.

The research identified a **documented pattern of Kentucky State Police misconduct** including false testimony, retaliation arrests, and evidence destruction, with minimal accountability. This institutional context strengthens arguments about police credibility and coercive tactics. [Lexipol](https://www.lexipol.com/resources/blog/talk-nice-think-mean-leads-to-voluntary-conversation-and-no-suppression/) Kentucky's receiving stolen property statute requires proof that defendants knew property was stolen at the time they received it, with valuation determined at receipt rather than theft. [U.S. Courts +6](https://www.uscourts.gov/about-federal-courts/educational-resources/educational-activities/fifth-amendment-activities/miranda-v-arizona/related-circuit-court-cases-miranda-v-arizona) Polygraph refusal cannot be used against defendants. [Kacdl +2](https://www.kacdl.net/content.asp?contentid=188) The statutory requirement that defendants "volunteer" false information for hindering prosecution charges—rather than merely answer questions—provides a textual defense argument, [LawServer](https://www.lawserver.com/law/state/kentucky/ky-statutes/kentucky_statutes_520-110) though appellate authority specifically addressing this distinction is absent. [Kentucky Legislature +2](https://apps.legislature.ky.gov/law/statutes/statute.aspx?id=19878)

Miranda warnings and "informal" interrogation framing

The Hoyer precedent: Most directly applicable case

United States v. Hoyer, Criminal Action No. 3:18-CR-000216-RGJ (W.D. Ky. Oct. 21, 2019), provides the **strongest precedent** for suppressing statements when officers minimize the interrogation's official nature.

Detective Morris interrogated Hoyer in custody in a KSP interview van. More than four minutes into the interrogation, Morris stated **"You are not under arrest. We're just here to talk to you"** [4:32-4:35]. He then immediately read Miranda rights and obtained a signed waiver, but continued without any break in questioning. [Findlaw](https://caselaw.findlaw.com/court/va-supreme-court/1127344.html) [govinfo](https://www.govinfo.gov/content/pkg/USCOURTS-kywd-3_18-cr-00216/pdf/USCOURTS-kywd-3_18-cr-00216-0.pdf)

The court **suppressed all statements**, applying *Missouri v. Seibert* analysis. The court found Miranda warnings were ineffective when delivered "in the middle" of interrogation after officers framed the encounter as informal. All five *Seibert* factors supported suppression: pre-Miranda questions were complete enough to secure conviction, substantial overlap existed between pre- and post-Miranda statements, same setting with no break except warning, same officers throughout, and questions were treated as continuous. [Findlaw](https://caselaw.findlaw.com/us-6th-circuit/1332728.html) [govinfo](https://www.govinfo.gov/content/pkg/USCOURTS-kywd-3_18-cr-00216/pdf/USCOURTS-kywd-3_18-cr-00216-0.pdf)

Critical judicial language: "Unless the warnings could place a suspect who has just been interrogated in a position to make an informed choice, there is no practical justification for accepting the formal warnings as compliance with Miranda." The officer's statement that Hoyer was "not under arrest" and they were "just here to talk" rendered subsequent Miranda warnings ineffective. [Findlaw](https://caselaw.findlaw.com/us-6th-circuit/1332728.html) Detective Morris admitted under cross-examination that Hoyer made no inculpatory statements post-Miranda that he had not already made pre-Miranda. [Findlaw](https://caselaw.findlaw.com/us-6th-circuit/1332728.html) [GovInfo](https://www.govinfo.gov/content/pkg/USCOURTS-kywd-3_18-cr-00216/pdf/USCOURTS-kywd-3_18-cr-00216-0.pdf)

Outcome: FAVORABLE - All statements suppressed, both pre- and post-Miranda.

School interrogation parallel: N.C. v. Commonwealth

N.C. v. Commonwealth, 2001-SC-000271-DF (Ky. Apr. 25, 2013), addressed similar minimization tactics in a school setting. An assistant principal and armed school resource officer questioned juvenile N.C. about distributing hydrocodone pills in a closed office. The juvenile believed he faced only school discipline and "had no reason to believe that he was facing criminal charges." No Miranda warnings were given. [Justia +3](https://supreme.justia.com/cases-by-topic/miranda-rights/)

The Kentucky Supreme Court **suppressed the statements**, holding Miranda warnings are required when a student in custody is questioned by administrators and law enforcement working together about conduct that could lead to criminal charges. [Bowlesrice](https://www.bowlesrice.com/newsroom-articles-31.html) While recognizing schools' needs to maintain order, the Court balanced this against juveniles' rights: **"A proper balance is struck if school officials may question freely for school discipline and safety purposes, but any

statement obtained may not be used against a student as a basis for a criminal charge when law enforcement is involved"** unless Miranda warnings are given. [Findlaw](https://caselaw.findlaw.com/court/in-court-of-appeals/1890124.html)

The Court expressed concern about the "loose routine they followed for questioning students when there was suspected criminal activity" and the "dramatic shift away from traditional in-school discipline towards greater reliance on juvenile justice interventions." [Bowlesrice](https://www.bowlesrice.com/newsroom-articles-31.html) The 45-day jail sentence was reversed. [Findlaw](https://caselaw.findlaw.com/court/in-court-of-appeals/1890124.html)

Outcome: FAVORABLE - Statements suppressed, conviction reversed.

Wearing down resistance after invocation

Carlisle v. Commonwealth, 2009-CA-000948-MR (Ky. Ct. App. May 20, 2011), provides another favorable precedent. Detective Trimborn interrogated Carlisle about rape allegations. Carlisle invoked his right to remain silent. Officer Newman returned and resumed questioning without re-Mirandizing, trying to convince Carlisle to waive rights by suggesting Newman could "offer help only if Carlisle did so." Detective Trimborn and Newman later returned while completing arrest paperwork and conveyed the prosecutor's position that if Carlisle "ain't said a word to try to help himself, then there will be no deals cut whatsoever." [Northwestern Law](https://scholarlycommons.law.northwestern.edu/cgi/viewcontent.cgi?article=6835&context=jclc) [Findlaw](https://caselaw.findlaw.com/ky-court-of-appeals/1531856.html)

The Kentucky Court of Appeals **suppressed the confession**, finding officers "engaged in a pattern of behavior designed to deprive Carlisle of his right to remain silent" by "persisting in repeated efforts to wear down his resistance and make him change his mind." Applying *Michigan v. Mosley*, the court concluded **"this is a case where the police failed to honor a decision of a person in custody to cut off questioning...by persisting in repeated efforts to wear down his resistance."** The guilty plea was vacated and the case remanded. [Findlaw](https://caselaw.findlaw.com/ky-court-of-appeals/1531856.html)

Outcome: FAVORABLE - Confession suppressed, conviction vacated.

Unfavorable precedent: Implied waiver doctrine

United States v. Chambers, Criminal Action No. 3:14CR-108-JHM (W.D. Ky. July 28, 2015), demonstrates the risk of implied waiver. Detectives questioned Chambers during a search warrant execution. The officer provided an informal preamble: "So like everything else, you've probably heard this before watching TV or whatever, but it's procedure and we always go through it." Chambers acknowledged understanding but never expressly waived rights. [GovInfo](https://www.govinfo.gov/content/pkg/USCOURTS-kywd-3_14-cr-00108/pdf/USCOURTS-kywd-3_14-cr-00108-0.pdf) [govinfo]

(https://www.govinfo.gov/content/pkg/USCOURTS-kywd-3_14-cr-00108/pdf/USCOURTS-kywd-3_14-cr-00108-0.pdf)

The court denied suppression, finding implied waiver sufficient under *Berghuis v. Thompkins*. Chambers understood his rights and continued answering questions, which constituted implied waiver. [GovInfo](https://www.govinfo.gov/content/pkg/USCOURTS-kywd-3_14-cr-00108/pdf/USCOURTS-kywd-3_14-cr-00108-0.pdf) The court rejected the argument that "obediently answering questions" demonstrated lack of waiver. The court also rejected coercion claims, including that the officer's statement "it's really hard for you to know what we know...especially not knowing what we know" was not objectively coercive. The officer's religious appeal ("I too am but a humble servant of the Lord...the path to forgiveness begins with the truth") did not render the statement involuntary. [GovInfo](https://www.govinfo.gov/content/pkg/USCOURTS-kywd-3_14-cr-00108/pdf/USCOURTS-kywd-3_14-cr-00108-0.pdf) [govinfo](https://www.govinfo.gov/content/pkg/USCOURTS-kywd-3_14-cr-00108/pdf/USCOURTS-kywd-3_14-cr-00108-0.pdf)

Outcome: UNFAVORABLE - Statements admitted despite informal framing.

CPS threats and coercion unrelated to investigation

Primary case: Stanton v. Commonwealth

Stanton v. Commonwealth, 350 S.W.3d 740 (Ky. 2011), is the **only published Kentucky appellate decision** directly addressing police threats of CPS involvement to coerce cooperation. In December 2008, Stanton's stepson accused him of sexual assault. Officer Lancaster and social worker Donna Monroe interviewed the child, then located Stanton at his brother's house with his wife and their two young children. Officers insisted the family follow them to the Guthrie police station. [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html) [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html)

The critical coercive tactic: Social worker Monroe told Stanton she would seek a court order for removal of his two children from the family home unless he "cooperated" with her and Officer Lancaster. [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html) [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html) After receiving Miranda warnings, Stanton confessed to sexual contact with his stepson on two occasions. Stanton later sought psychiatric evaluation and was found to have bipolar disorder with psychotic tendencies and low intelligence (IQ 73-82). [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html)

The Kentucky Supreme Court **UPHELD the trial court's denial of the suppression motion**, ruling the confession voluntary and admissible. [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html) However, the Court's reasoning provides **critical guidance** on the boundaries of permissible threats.

Important judicial language on coercive tactics: The Court acknowledged that **"statements in that vein can be threatening and coercive"** and that **"when law enforcement personnel deliberately prey upon parental instincts by conjuring up dire scenarios in which a suspect's children are lost and by insinuating that the suspect's 'cooperation' is the only way to prevent such consequences, the officers run a grave risk of overreaching."** [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html) [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html)

The Court cited *People v. Medina*, 25 P.3d 1216, 1226 (Colo. 2001) (en banc), noting that where a detective threatens "the detective would cause the child to lose his mother and the mother, her child; and...if he did confess, mother and child would be together, and the detective would help [the defendant] to be reunited with them," such tactics risk overreaching and can "overbear" the suspect's will. [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html)

Critical distinction: The Court distinguished *Stanton* from improper cases, stating the threat was "not a speculative threat of ultimate loss of Stanton's children, but an accurate statement of what was apt to happen next in such cases, and as such it did not amount to overreaching by the state agents involved." [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html) The Court emphasized: **"when circumstances justify informing the suspect of the officers' intended next step, the information should be conveyed in a professional manner, without threatening words or tone, because if not handled appropriately a trial court may well find that resulting statements are the product of coercion."** [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html) [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html)

Outcome: UNFAVORABLE for suppression - Statements admitted, but Court established important standards.

Legal framework from Stanton

Stanton establishes Kentucky courts will examine whether threats of CPS involvement:

1. Represent accurate statements of what police/officials are authorized to do versus speculative threats
2. Are delivered in professional manner without threatening words or tone versus manipulative/threatening delivery
3. Overbear suspect's will and critically impair capacity for self-determination
4. Deliberately prey upon parental instincts by conjuring dire scenarios with implicit promises that cooperation prevents consequences [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html)

The Court cited **Lynumn v. Illinois**, 372 U.S. 528, 534 (1963), where the U.S. Supreme Court found a confession involuntary when police told a defendant that "state financial aid for her infant children would be cut off, and her children taken from her, if she did not 'cooperate.'" [Findlaw +2]

(https://caselaw.findlaw.com/court/me-supreme-judicial-court/1534924.html) The Court also cited **United States v. Tingle**, 658 F.2d 1332, 1336 (9th Cir. 1981), where police told a burglary suspect she was facing prison and might not see her young child for "a while" if she did not confess, and the confession was found involuntary. The 9th Circuit emphasized: **"The relationship between parent and child embodies a primordial and fundamental value of our society."**

Workplace interrogations and employment consequences

Limited Kentucky authority but strong federal precedent

Kentucky lacks published appellate decisions specifically addressing police workplace interrogations that resulted in job loss or employment consequences. However, **United States v. Romaszko**, 253 F.3d 757 (2d Cir. 2001), provides the **strongest precedent** for arguing workplace interrogations create custody when employment loss is threatened, and offers persuasive authority given Kentucky's practice of following federal constitutional interpretation.

Maryann Romaszko was employed as a window clerk at the Niagara Square Post Office. After a loss was discovered, Postal Inspectors Kurt Hammer and Molly Hackimer interviewed her in the station manager's office during work hours. The meeting was planned when Romaszko was at work and she was directed by her boss to attend. She was confronted by two Postal Inspectors with badges, handcuffs and weapons, who immediately accused her of stealing money. [U.S. Courts](https://www.uscourts.gov/about-federal-courts/educational-resources/educational-activities/fifth-amendment-activities/miranda-v-arizona/related-circuit-court-cases-miranda-v-arizona) She was never told she was free to leave. On at least five occasions, Romaszko asked to leave or attempted to stand up and was told she could not. At one point, the lead investigator told Romaszko, **"No, you're not going anywhere."** She was not advised of her Miranda rights.

Critical holding on economic coercion: The court held that **"a reasonable person in Romaszko's shoes would not have felt free to leave the meeting unless they wanted to suffer the economic sanction of losing their job."** This represents explicit judicial recognition that employment consequences create custody. The court found several factors critical: the meeting was scheduled during work hours with Romaszko directed by her boss to attend (workplace command structure coercion), the presence of armed federal agents with badges and handcuffs created police-dominated atmosphere despite familiar workplace, repeated denials of permission to leave demonstrated actual restraint, and immediate accusations created confrontational atmosphere from outset. [Findlaw](https://caselaw.findlaw.com/court/us-2nd-circuit/1305679.html) [Justia](https://law.justia.com/cases/federal/appellate-courts/F3/253/757/576227/)

The district court suppressed statements and the 2nd Circuit affirmed suppression. [US Courts +2](https://www.uscourts.gov/educational-resources/educational-activities/related-circuit-court-cases-miranda-v-arizona) **Outcome: FAVORABLE** - Statements obtained without Miranda warnings were inadmissible.

Kentucky constitutional framework

Crane v. Kentucky, 476 U.S. 683 (1986), involving a Kentucky defendant, establishes that even if a confession is found voluntary, the defendant has a constitutional right to present evidence about the circumstances of interrogation—including workplace setting, duration, who was present—to challenge the confession's credibility before the jury. [Justia +7](https://law.justia.com/constitution/us/amendment-06/18-custodial-interrogation.html) The U.S. Supreme Court reversed the Kentucky courts, holding that **"The physical and psychological environment that yielded a confession is not only relevant to the legal question of voluntariness but can also be of substantial relevance to the ultimate factual issue of the defendant's guilt or innocence."** [FindLaw +3](https://caselaw.findlaw.com/court/us-supreme-court/476/683.html)

Deceptive interrogation tactics and fabricated evidence

Landmark case: Gray v. Commonwealth on fabricated documents

Gray v. Commonwealth, 2013-SC-000374-MR, 491 S.W.3d 69 (Ky. 2016), represents Kentucky's **most significant restriction** on police deception during interrogations. James Anthony Gray was suspected of murdering his parents in 2007. He was summoned to the sheriff's office ostensibly about his parents' will and subjected to protracted interrogation. Police tactics included false statements about evidence and **fabricated documents purporting to show DNA test results** linking Gray to the crime. These documents represented official results of a state police lab's DNA examination, but were completely falsified—no such test had been conducted. The interrogation was five-and-a-half hours, unrecorded. [Findlaw](https://caselaw.findlaw.com/court/ky-supreme-court/1726498.html) [vLex](https://case-law.vlex.com/vid/gray-v-commonwealth-2013-891452433)

The Kentucky Supreme Court **suppressed the confession**, creating a **new presumption**: "Although we must decline to adopt for Kentucky a bright-line rule that the use of falsified documents is objectively coercive in all situations, we think the risk of constitutional infirmity is so severe that a petitioning defendant is entitled to a presumption in his favor." **When police use falsified documents to induce a confession, the confession is presumed unconstitutional until the Commonwealth proves the documents did not overwhelm the defendant's will and were not a critical factor in the decision to confess.** [Findlaw +2](https://caselaw.findlaw.com/court/ky-supreme-court/1726498.html)

Critical judicial language: **"The use of false statements and phony lab reports as the sole basis for hours of unrecorded interrogation offends the guarantee of due process of law."** [WKYT](https://www.wkyt.com/content/news/Man-convicted-of-killing-parents-in-Scott-County-to-get-new-trial-369286741.html) The Court emphasized: "Although no single factor prompts our decision, the hours of manipulation and fabricated evidence can be nothing other than coercion that overbore Gray's free will." [vLex](https://case-law.vlex.com/vid/gray-v-commonwealth-2013-891452433) The Court distinguished this from permissible tactics: **"Statements deceptively overstating the evidence against a criminal defendant during interrogation fall within the trickery we have traditionally tolerated. But we have never faced a situation where

deceptive interrogation tactics included fake reports made to link DNA evidence to the defendant."** [Findlaw +2](https://caselaw.findlaw.com/court/ky-supreme-court/1726498.html)

The Court also noted: **"Because of the credibility officers of the law enjoy in our community and the persuasive force that associated with a confession made to the police, we simply cannot uphold Gray's verdict in light of the circumstances in this case."** [Findlaw](https://caselaw.findlaw.com/court/ky-supreme-court/1726498.html) Convictions were reversed and the case remanded. [Findlaw] (https://caselaw.findlaw.com/court/ky-supreme-court/1726498.html) [Wikipedia] (https://en.wikipedia.org/wiki/Kentucky_Center_for_Investigative_Reporting)

Outcome: FAVORABLE - Confession suppressed, conviction reversed.

Permissible versus impermissible deception

Springer v. Commonwealth, 96-SC-502-MR, 998 S.W.2d 439 (Ky. 1999), establishes the baseline for permissible police deception. [North Carolina Criminal Law](https://nccriminallaw.sog.unc.edu/how-far-may-law-enforcement-officers-go-in-misleading-suspects-during-interrogations/) Kimberly Springer was convicted as accomplice to her husband's murder. Police used a videotaped statement from a co-defendant to convince Springer that police already had proof of her guilt, and interrogators misrepresented the strength of their case.

The Kentucky Supreme Court upheld the confession, establishing Kentucky's general rule: **"The mere employment of a ruse, or 'strategic deception,' does not render a confession involuntary so long as the ploy does not rise to the level of compulsion or coercion."** The Court held that misrepresentation by interrogators of the strength of their case does not render an otherwise voluntary confession inadmissible. By inducing defendant to believe police already knew who committed the crime, interrogators did not lead her to consider anything beyond her own beliefs regarding actual guilt or innocence. [Findlaw +2] (https://caselaw.findlaw.com/ky-supreme-court/1342031.html)

Outcome: UNFAVORABLE - Confession admitted despite deception.

Mental capacity and deceptive tactics

Bailey v. Commonwealth, 194 S.W.3d 296 (Ky. 2006), establishes that tactics not objectively coercive for typical suspects can be coercive when used on mentally handicapped individuals. Bailey had an IQ around 70, was very compliant with authority figures, and prone to agree with whatever was suggested. Police used standard interrogation techniques. [Findlaw](https://caselaw.findlaw.com/court/ky-supreme-court/1288315.html)

The Kentucky Supreme Court **suppressed the confession**, holding: **"When a suspect suffers from some mental incapacity, such as intoxication or retardation, and the incapacity is known to interrogating officers, a

'lesser quantum of coercion' is necessary to call a confession into question."** [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1645742.html) The Court emphasized: **"This case justifies the rationale underlying the use of the totality of the circumstances approach: it is simply impossible to evaluate the police action outside the lens of Bailey's very serious mental deficiency, which necessarily calls into question his ability to give a reliable confession."** [Findlaw](https://caselaw.findlaw.com/court/ky-supreme-court/1288315.html)

Outcome: FAVORABLE - Confession suppressed.

Police lying about witness contacts

No specific published Kentucky appellate cases were found from 2000-present directly addressing police lying about whether they spoke to other officers or witnesses, or catching suspects in contradictions by lying about what others said. However, under *Springer v. Commonwealth*, general misrepresentations about evidence and what police know are typically permitted unless they rise to the level of compulsion or coercion. [Lawpipe](https://www.lawpipe.com/Kentucky/Springer_v_Commonwealth.html) Police can use statements from co-defendants and misrepresent what evidence they have, and this tactic is generally **permitted** in Kentucky unless combined with other coercive factors. [Findlaw](https://caselaw.findlaw.com/court/ky-supreme-court/1726498.html) [vLex](https://case-law.vlex.com/vid/gray-v-commonwealth-2013-891452433)

Text messages and fake security cameras

No published Kentucky appellate cases were found involving text messages from police as evidence of coercion or bad faith in interrogations, or addressing fake/decoy security cameras as an issue in criminal investigations. These appear to be **emerging areas of law without published Kentucky precedent** from 2000-present, which may indicate either that such issues have not been litigated at the appellate level or were resolved at trial court level without published opinions.

Kentucky appellate standards for suppression

Three-part test for coercion

Kentucky courts apply a three-part test established in **Gray v. Commonwealth** (2016) to determine whether a confession was coerced:

1. Whether police activity was objectively coercive
2. Whether the coercion overwhelmed the will of the defendant
3. Whether the defendant has shown that the coercive activity was the "crucial motivating factor" behind the confession [Justia](https://law.justia.com/cases/kentucky/supreme-court/1995/93-sc-618-dg-1.html) [Findlaw](https://caselaw.findlaw.com/court/ky-supreme-court/1726498.html)

The Due Process Clause of the Fourteenth Amendment precludes use of involuntary confessions. An involuntary confession is one "not the product of a rational intellect and a free will," and **"coercive police activity is a necessary predicate to the finding that a confession is not 'voluntary'"** within the meaning of Due Process. [Findlaw +3](https://caselaw.findlaw.com/court/ky-supreme-court/1726498.html)

Burden of proof and consent to search

Cook v. Commonwealth, 826 S.W.2d 329 (Ky. 1992), and **Commonwealth v. McManus**, 107 S.W.3d 175, 177 (Ky. 2003), establish that for warrantless searches and seizures, the **Commonwealth bears the burden** to prove by preponderance of evidence that consent was "freely and voluntarily given in view of all the circumstances." Warrantless searches are **presumed unreasonable** unless within a clearly defined exception. [Justia](https://law.justia.com/cases/kentucky/supreme-court/1992/90-sc-874-dg-1.html)

Kentucky courts distinguish between Fifth Amendment standards (requiring "knowing and intelligent" waiver for statements) and Fourth Amendment standards (requiring "voluntary" consent for searches). The trial court in *Cook* erred by requiring Commonwealth to prove consent was "intelligently given" rather than "freely and voluntarily given." [Justia](https://law.justia.com/cases/kentucky/supreme-court/1992/90-sc-874-dg-1.html)

Threats unrelated to investigation: Legal framework

Stanton v. Commonwealth (2011) and **Henson v. Commonwealth**, 20 S.W.3d 466 (Ky. 1999), establish when threats involving consequences unrelated to criminal charges are permissible versus coercive. **Henson** held that confession induced by threat to arrest suspect's girlfriend was proper where the threat accurately represented what police were authorized to do and probable cause existed for the arrest. The standard: It is not improper for investigators to urge cooperation by threatening arrest of implicated friend/family member, **provided probable cause and good faith would support the arrest**. [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html)

The constitutional standard from *Stanton*: **"The Fourteenth Amendment prohibits interrogation tactics calculated to overbear a suspect's will and to produce confessions involuntary in the sense that the suspect's capacity to choose has been distorted and critically impaired."** [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1581035.html) Courts examine the totality of circumstances including suspect's mental capacity, Miranda compliance, and presence of other coercive factors.

Violation of explicit agreements

Canler v. Commonwealth, 865 S.W.2d 719 (Ky. 1994), establishes that where a defendant's attorney clearly requested and received specific agreement that no questions would be asked beyond a polygraph examination, subsequent questioning violates that agreement and renders statements involuntary. [Justia](https://law.justia.com/cases/kentucky/supreme-court/1994/93-sc-049-dg-1.html) The trial court properly

suppressed the confession. **An involuntary statement cannot be used at trial under any circumstances**, citing *Mincey v. Arizona*, 437 U.S. 385 (1978). [Justia](https://law.justia.com/cases/kentucky/supreme-court/1994/93-sc-049-dg-1.html) [The Federal Criminal Attorneys] (https://www.thefederalcriminalattorneys.com/false-and-coerced-confessions)

Outcome: FAVORABLE - Suppression affirmed.

Procedural requirements under RCr 8.27

Kentucky Rules of Criminal Procedure 8.27 governs suppression motions. The court must conduct a hearing on the record before trial with no jury present. Both parties must exchange witness statements 48 hours before the suppression hearing. The court must make findings of fact and conclusions of law. The party who would lose if no evidence is presented bears the burden of proof. [ky +3](https://dpa.ky.gov/wp-content/uploads/2024/06/Suppression-Manual-May-2024.pdf)

Standard of review: Trial court's factual findings are reviewed for clear error and are conclusive if supported by substantial evidence. Legal determinations are reviewed de novo.

Receiving stolen property charges in Kentucky

Statutory elements and knowledge requirement

Kentucky's receiving stolen property statute, **KRS 514.110**, requires proof that a person receives, retains, or disposes of movable property of another knowing that it has been stolen, or having reason to believe that it has been stolen, unless received with intent to restore it to the owner. [Criminaldefenselex] (https://criminaldefenselex.com/practice-areas/theft-shoplifting-defense-attorney) The statute creates **prima facie evidence** of knowledge: "The possession by any person of any recently stolen movable property shall be prima facie evidence that such person knew such property was stolen" (KRS 514.110(2)). [Criminaldefenselex +2](https://criminaldefenselex.com/practice-areas/theft-shoplifting-defense-attorney) This creates a rebuttable presumption shifting the burden to the defendant to explain possession.

Classification depends on value: under $500 is Class A misdemeanor; $500-$9,999 is Class D felony; $10,000 or more is Class C felony. Any firearm, regardless of value, is a Class D felony. [Criminaldefenselex] (https://criminaldefenselex.com/practice-areas/theft-shoplifting-defense-attorney)

Critical vehicle case: Lawson v. Commonwealth

Lawson v. Commonwealth, 2000-SC-0024-TG (Ky. 2002), involved a 1986 Pontiac Firebird automobile taken from Jim Sharp's used car dealership. The appellant was employed to detail cars at his step-uncle's dealership. On February 14, 1999, the Firebird was taken without Sharp's permission. A deputy observed the Firebird speeding and the driver fled at 100-125 mph on Interstate 75, crashing into a guard rail. [Findlaw]

(https://caselaw.findlaw.com/ky-supreme-court/1066792.html) [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1066792.html)

The Kentucky Supreme Court **affirmed conviction**, addressing whether Unauthorized Use of Automobile (KRS 514.110—joyriding) is a lesser-included offense of Receiving Stolen Property. The Court held they are **separate offenses with different elements**. [Findlaw](https://caselaw.findlaw.com/ky-supreme-court/1066792.html) Receiving stolen property requires knowledge of stolen character, while unauthorized use requires only knowledge of lack of consent. The Court emphasized that receiving stolen property and unauthorized use have different mens rea: receiving requires knowledge property was stolen; joyriding requires only knowledge of lack of consent for temporary taking.

Outcome: UNFAVORABLE - Conviction affirmed; 20 years total (10 for receiving, 10 for fleeing, consecutive).

Valuation challenges: Critical defense opportunities

Commonwealth v. Reed, 57 S.W.3d 269 (Ky. 2001), provides **critical guidance favorable to defendants** on valuation challenges. Reed was found in possession of only a tool box and burlap bag with "a few tools" from a larger theft. He was charged with receiving stolen property over $300 (Class D felony at the time). The owner testified all stolen items were worth over $300, but gave **no specific value for items actually found in Reed's possession**—only the value of all items taken. [Justia] (https://law.justia.com/cases/kentucky/supreme-court/2001/1999-sc-0726-dg-1.html)

The Kentucky Court of Appeals **reversed the conviction**, holding the Commonwealth failed to prove the items in Reed's possession met the $300 threshold. The Kentucky Supreme Court affirmed, establishing the principle: **Commonwealth must prove value of specific items defendant actually possessed, not value of all stolen property.** Owner's testimony is competent evidence of value, but testimony about total theft value is insufficient if only partial recovery from defendant. [Justia](https://law.justia.com/cases/kentucky/supreme-court/2001/1999-sc-0726-dg-1.html)

Outcome: FAVORABLE - Conviction reversed, remanded for sentencing on Class A misdemeanor.

D.L. v. Commonwealth, 2011-CA-000309-DG (Ky. Ct. App. 2012), establishes another critical valuation principle: **value is determined at the time defendant receives property, not at time of original theft**. The Court held "the value of the stolen property on the date the offender receives it is the proper date for determining the severity of the violation." [Findlaw](https://caselaw.findlaw.com/court/ky-court-of-appeals/1594967.html) This allows depreciation arguments when property loses value between theft and receipt. The Court reversed and remanded for entry of judgment on misdemeanor conviction because the Commonwealth failed to prove value exceeded $500 at the time D.L. received the property. [Findlaw] (https://caselaw.findlaw.com/court/ky-court-of-appeals/1594967.html)

Outcome: FAVORABLE - Conviction reversed to misdemeanor.

Single offense doctrine: Double jeopardy protection

Cooley v. Commonwealth, 870 S.W.2d 219 (Ky. 1994), establishes that receiving stolen property is a **single offense** even when property is received once then retained or disposed of separately. Cooley received 26 stolen firearms in Mason County, knew they were stolen, transported them to Bourbon County, disposed of 24 by sale, and retained 2. He was prosecuted in both Mason County (for retention) and Bourbon County (for disposition). [Justia](https://law.justia.com/cases/kentucky/supreme-court/1991/90-sc-290-dg-1.html)

The Kentucky Supreme Court **reversed the Bourbon County conviction**, holding KRS 514.110 interpreted as single offense statute. "Receives, retains, or disposes of" are **alternative means of committing a single offense, not separate offenses**. Cannot sustain subsequent conviction when defendant previously placed in jeopardy. [Justia](https://law.justia.com/cases/kentucky/supreme-court/1991/90-sc-290-dg-1.html) Evidence showed only one act of receiving stolen property (in Mason County), with subsequent retention and disposition part of same continuing course of conduct.

Outcome: FAVORABLE - Double jeopardy violation, Bourbon County conviction reversed and indictment dismissed.

Independent substantive offense

Hardin v. Commonwealth, 437 S.W.2d 931 (Ky. Ct. App. 1968), establishes that **"The crime of knowingly receiving stolen property is a substantive crime, complete in itself, and is not, under the statute, an accessorial act to a larceny."** Receiving stolen property is separate and independent from theft. A defendant can be convicted of receiving even where acquitted of the underlying theft. The crime is committed where stolen property is received or retained with knowledge, not necessarily where stolen. Venue requires "slight evidence" that defendant received property in the county charged. [Justia](https://law.justia.com/cases/kentucky/court-of-appeals/1968/437-s-w-2d-931-0.html)

Accessory after the fact and obstruction charges

Statutory framework and "volunteers" requirement

Kentucky's hindering prosecution statute, **KRS 520.120/520.130**, requires proof that a defendant with intent to hinder apprehension, prosecution, conviction or punishment of another person who is being sought in connection with a criminal offense, rendered "assistance" as defined in KRS 520.110. KRS 520.110(e) defines one form of rendering assistance as: **"Volunteers false information to a law enforcement officer."** [LawServer](https://www.lawserver.com/law/state/kentucky/ky-statutes/kentucky_statutes_520-110)

The statute uses the specific term **"volunteers"** false information, which suggests an affirmative act beyond merely responding to questions. This language implies active offering of information rather than passive response, creating a distinction between volunteering false information (potentially criminal) versus being questioned and providing false answers (may not meet "volunteer" standard). [LawServer] (https://www.lawserver.com/law/state/kentucky/ky-statutes/kentucky_statutes_520-110)

The statute provides a defense if the accused is a spouse, parent, child, brother, sister, grandparent or grandchild of the person being sought. [LawServer +2](https://www.lawserver.com/law/state/kentucky/ky-statutes/kentucky_statutes_520-130) Kentucky also has separate statutes for **KRS 519.040** (Falsely Reporting an Incident—covers knowingly giving false information with intent to implicate another) and **KRS 523.060** (Unsworn Falsification to Authorities—Class B Misdemeanor for material false statements with intent to mislead public servant). [Campbellcountyattorney] (https://www.campbellcountyattorney.com/news/perjury)

Gap in published appellate authority

No published Kentucky appellate cases from 2000-2025 were found specifically addressing whether merely answering police questions constitutes "volunteering" false information, the distinction between responding to questioning versus volunteering information, or cases where hindering prosecution charges were dismissed for insufficient conduct based solely on answers to questions.

Turpin v. Commonwealth, 780 S.W.2d 271 (Ky. 1989) [outside timeframe but relevant], involved Elizabeth Turpin's claim that she did not plan or participate in her husband's murder, but only assisted in the cover-up afterward. She requested an instruction on hindering prosecution as an alternative to murder. The Kentucky Supreme Court noted: **"While hindering prosecution is not a lesser included offense of murder, it is quite clearly a lesser criminal offense."** Justice Leibson's opinion recognized: **"If the jury believed Turpin's testimony, hindering prosecution was the only offense that she committed. She testified that she neither planned nor participated in killing Turpin, that her only crime was to assist them in their attempted cover-up."** [Justia](https://law.justia.com/cases/kentucky/supreme-court/1989/87-sc-84-mr-1.html) However, this case did not address the distinction between answering questions and volunteering information.

Textual argument for defense

The statutory structure provides all six methods of "rendering assistance," and "volunteering false information" is only one method. The other methods all involve affirmative acts: harboring/concealing, warning, providing resources (money, transportation, weapon, disguise), obstructing by force/deception/intimidation, and suppressing evidence by concealment/alteration/destruction. [LawServer] (https://www.lawserver.com/law/state/kentucky/ky-statutes/kentucky_statutes_520-110) [Kentucky Legislature](https://apps.legislature.ky.gov/law/statutes/statute.aspx?id=19878) This suggests "volunteering false information" requires a similar level of affirmative conduct rather than mere response to interrogation.

The scarcity of published appellate opinions suggests either this tactic is infrequently charged in Kentucky, such challenges are resolved at trial court level without appellate review, or defendants may be pleading guilty without pursuing suppression appeals on this issue. **This gap in case law may favor defendants**, as it suggests prosecutors rarely charge based solely on answering questions, possibly recognizing difficulty proving the "volunteer" element, constitutional concerns about the Fifth Amendment right to remain silent, or insufficient evidence of intent to hinder.

Polygraph refusal in Kentucky

General inadmissibility with defendant exception

Kentucky courts consistently hold that polygraph test results are **inadmissible**, testimony concerning polygraph results is inadmissible, and testimony concerning defendant's willingness or refusal to take a polygraph is inadmissible. The rationale is that polygraph results are "inherently unreliable and inadmissible" and "are not sufficiently reliable to establish guilt or innocence." [Justia](https://law.justia.com/cases/kentucky/court-of-appeals/1964/382-s-w-2d-865-1.html)

Conley v. Commonwealth, 382 S.W.2d 865 (Ky. Ct. App. 1964), established Kentucky's foundational position. Even where a defendant signed a waiver agreeing that polygraph results could be used as evidence, the Court **reversed the conviction**, holding polygraph evidence should have been excluded despite stipulation. The Court noted: **"Because the scientific trustworthiness of the lie-detector test is still tenuous, the courts will not at present recognize in an unrestricted manner the results."** The Court cited accuracy concerns: "In 75 to 80 per cent of the cases the examination correctly indicates the guilt or innocence of the accused; in 15 to 20 per cent, the results are too indefinite to warrant a judgment one way or the other; and in 5 per cent, the margin of error is conclusive." [Justia](https://law.justia.com/cases/kentucky/court-of-appeals/1964/382-s-w-2d-865-1.html)

Outcome: FAVORABLE - Conviction reversed.

Rogers exception: Defendant's right to present defense

Rogers v. Commonwealth, 86 S.W. [Tennessee Courts](https://www.tncourts.gov/sites/default/files/mccaleb.quintis.opn_.pdf) [Findlaw](https://caselaw.findlaw.com/court/ky-supreme-court/1066794.html) 3d 29 (Ky. 2002), established a **critical exception favorable to defendants**. Rogers, a defendant with intellectual disabilities, took a polygraph exam. Detectives informed Rogers he "failed" the examination, then questioned him and he subsequently confessed. The trial court prohibited defendant from introducing evidence about the polygraph to explain circumstances of the confession.

The Kentucky Supreme Court **reversed and remanded**, holding the trial court committed reversible error. The Court held: **"Although polygraph evidence is not admissible in Kentucky, a defendant—and only the

defendant—has the right, as a matter of trial strategy, to [Tennessee Courts](https://www.tncourts.gov/sites/default/files/mccaleb.quintis.opn_.pdf) bring evidence of a polygraph examination before the jury to inform the jury as to the circumstances in which a confession was made."**

Critical judicial language: **"In the circumstances of this case, the defendant's right to present a defense trumps our desire to inoculate trial proceedings against evidence of dubious scientific value."** The Court continued: "By preventing Appellant from making any reference to the polygraph examination, the trial court pulled the proverbial rug out from under Appellant's defense and left Appellant unable to present the jury with the factual circumstances that he alleged caused him to confess falsely." The Court emphasized: **"Evidence relating to the circumstances surrounding [incriminating] statements...may be indispensable to [an] appellant's right to present a defense to the crime charged."**

Outcome: FAVORABLE - Conviction reversed, remanded for new trial where defendant can present polygraph evidence.

Refusal cannot be used against defendants

No Kentucky or 6th Circuit cases allow prosecution to use a defendant's polygraph refusal against the defendant or permit prosecution to mention refusal at trial. Refusal cannot be used as evidence of guilt, and no adverse inference may be drawn from refusal. The legal basis includes Fifth Amendment privilege against self-incrimination and Kentucky evidentiary rules on relevance and reliability.

Phillips v. Commonwealth, 2000-SC-000519-MR (Ky. 2000), established that **"Mere utterance of the word 'polygraph' is not grounds for reversal,"** but there must be "a clear inference that there was a result and that the result was favorable, or some other manner in which the inference could be deemed prejudicial" before reversal is required.

Police use as interrogation tool

Canler v. Commonwealth, 865 S.W.2d 719 (Ky. 1994), acknowledged that **"it is a general policy of the Kentucky State Police to attempt to use a polygraph examination to obtain a confession."** Courts recognize police regularly use polygraph examinations as interrogation tools. Post-polygraph statements may be admissible if statements are voluntary (not coerced), defendant knowingly waived Miranda rights, and no specific agreement limited questioning. However, as *Rogers* established, defendant has right to present evidence that being told he "failed" a polygraph led to confession, to challenge confession's credibility.

6th Circuit position

The 6th Circuit maintains that polygraph evidence remains excludable under Federal Rule of Evidence 403 even after *Daubert*. **United States v. Sherlin**, 67 F.3d 1208 (6th Cir. 1995), held: "A privately commissioned polygraph test, which was unknown to the government until after its completion, is of

extremely dubious probative value." The Court stated: **"Unilaterally obtained polygraph examinations are almost never admissible under Rule 403."**

News stories documenting Kentucky police misconduct patterns

Kentucky State Police false testimony and evidence fabrication

Kentucky Center for Investigative Reporting (February 28, 2022) investigated **five cases where Kentucky State Police troopers gave false testimony** about use of force or failed to disclose details, revealing systemic accountability failures.

The **Alex Hornback case** (April 2020, Shepherdsville/Bullitt County) involved three KSP troopers entering Hornback's home to serve an arrest warrant. Home security video showed Trooper Thomas Czartorski struck Hornback with a flashlight, and Trooper James Cameron Wright grabbed Hornback around the neck, threw him to the floor, hit him twice with his forearm, and placed his knee on Hornback's neck. **Both denied using force under oath** in January 2021 depositions. Wright denied seeing Czartorski strike Hornback despite kneeling beside him. Wright threatened Hornback's parents with Taser when they objected.

Outcomes demonstrating lack of accountability: Czartorski resigned February 2021 and was charged with perjury. Wright was **NOT disciplined** despite false testimony and was nominated for Trooper of the Year 2020 by his commander who knew of the incident. Wright continues testifying in criminal cases. He was later indicted in March 2025 on federal excessive force charges for separate incidents.

The **Lewis Lyttle case** (2016, Harlan County) involved Trooper Jimmy Halcomb and others arresting 67-year-old Lyttle for alleged indecent exposure. Halcomb **testified under oath that Lyttle resisted arrest** and had to be carried to the cruiser. Video showed troopers slapping, punching, and kicking a non-resistant Lyttle. A grand jury indicted Lyttle based on false testimony; charges were later dismissed. Halcomb received **no discipline** despite video evidence contradicting testimony.

The **Charles Christopher McClure fatal shooting** (January 16, 2017, Fulton) investigation showed KSP Lt. Lonnie Bell testified to a grand jury but **withheld body camera footage** showing McClure dropped his weapon after the first shot and was several feet away. Bell told the grand jury McClure "raised the pipe in a threatening manner"—later admitted under oath he did not recall this. Bell told jury McClure's hands were "hidden"—video showed them clearly visible. Bell told jury a knife was "inches away"—actually several feet away. The grand jury declined to indict based solely on Bell's testimony. Bell faced **no investigation, discipline, or prosecution** and retired July 2019.

Systemic implications: The investigation revealed that supervisors were complicit in covering up misconduct, officers faced minimal discipline even with video contradicting sworn testimony, and officers continued working and testifying in criminal cases despite established patterns of dishonesty.

KSP pattern of retaliation arrests

LEX 18 (2024-2025) documented multiple cases of KSP Trooper Myron Jackson using **false charges to retaliate against citizens** exercising constitutional rights.

Christen Johnson case (July 31, 2024, Franklin County): Jackson pulled over Johnson's mother in Johnson's driveway for allegedly expired tags. Johnson came outside on her own property to check on her mother. Jackson ordered her inside and threatened arrest if she didn't comply. When Johnson said she was on her own property, Jackson said **"I'm not going to ask again, so go back inside or you can go to jail."** Jackson arrested Johnson, twisted her arm, and dragged her while her three children (ages 2, 7, 10) watched from the window. Johnson was charged with obstructing governmental operations and resisting arrest. **All charges were dismissed** due to lack of probable cause. Johnson was jailed overnight: "It was hell. I don't know what else to say. It was a nightmare."

Nicholas Ngeh case (May 1, 2024, Franklin County): The same Trooper Jackson pulled over Ngeh for failing to use a turn signal. When Ngeh invoked his right to remain silent and not answer questions, Jackson became hostile. Jackson ordered Ngeh out of the vehicle without reasonable suspicion. When Ngeh questioned why, Jackson said **"Cuz I'm telling you to. Get out. You don't have a choice."** Jackson forcibly removed Ngeh from the vehicle and charged him with "obstructing governmental operations." Charges were dismissed.

Both filed federal lawsuits alleging First Amendment violations, battery, false arrest, and malicious prosecution. KSP launched an internal investigation in May 2025 after the pattern emerged with the same trooper using the same false charge to retaliate against citizens exercising rights.

Federal conviction for retaliation arrest

U.S. Department of Justice (sentenced 2019) prosecuted Sgt. William Dukes Jr. of Providence Police Department for retaliation arrest. A victim called Providence PD to file a complaint about an earlier interaction with Dukes. **Dukes answered and threatened to arrest the victim if he called back.** The victim then called the sheriff's office and Kentucky State Police to complain. Dukes drove to the victim's home after 1 a.m. **without a warrant**, entered the victim's home without a warrant when the victim retreated inside, tased him, pepper-sprayed him, struck him repeatedly with a baton, and punched him in the face, breaking his nose. Dukes charged the victim with four crimes, including property damage because the victim's blood got on Dukes's uniform.

A federal jury convicted Dukes of willfully violating the victim's constitutional rights under color of law. He was sentenced to **42 months (3.5 years) federal prison** and three years supervised release.

Louisville Metro Police pattern of wrongful arrests

Multiple Louisville sources (2018-2025) documented LMPD patterns including Det. Crystal Marlowe, who arrested **more than a dozen people over two years who could not have committed the crimes**. The **Tiffany Washington case** (December 2007) involved a University of Louisville student arrested for robbery based on "positive ID." Washington had bank statements, photos, phone records, and eyewitness testimony showing she was in Henderson County (130 miles away) at the time of robbery. She spent 5 days in jail on $50,000 bond. A grand jury declined to indict. A 2019 jury awarded **$2.25 million** ($2M compensatory, $250K punitive), though an appeals court later threw out the verdict on statute of limitations grounds (2022).

Marlowe was **fired in 2011** by Chief Robert White for wrongfully arresting several people. However, for 10 years (2010-2020), Louisville Metro **defended Marlowe**, spending hundreds of thousands in legal fees maintaining she did nothing wrong. After the Washington verdict, the city sued Marlowe (July 2020) to force her to pay the $2.25M judgment and legal fees—the city abandoned Marlowe after defending her for a decade.

Hazard Police Chief arrests man for requesting public records

Murray Ledger, Lexington Herald-Leader (September-November 2024) reported that Dallas Campbell went to Hazard Police Department on July 29, 2024 to request public records (officer names, hire dates, salaries)—clearly public documents under Kentucky law. Clerk Amber Hensley told Campbell he couldn't have records and salaries weren't public (false). Campbell was recording inside the lobby. Police Chief Darren Williams told Campbell he couldn't record (false—First Amendment protected) and told Campbell to "beat it." When Campbell didn't leave and asserted his rights, **Williams arrested him**, charging him with menacing and disorderly conduct. While waiting for transport to jail, **Hensley took Campbell's phone and deleted the video** with Williams standing nearby. Campbell did not give permission.

Campbell filed a federal lawsuit in September 2024 alleging malicious prosecution, violations of Kentucky Open Records Act, battery, and false arrest. This was the second lawsuit against Williams. The Hazard City Commission **fired Williams in November 2024**.

Conclusion: Strategic use of precedent and documented patterns

Kentucky courts have established meaningful constitutional protections against certain coercive interrogation tactics while permitting others. The research reveals **three categories of authority**: favorable precedents for defendants (*Hoyer*, *Gray*, *Rogers*, *Reed*, *D.L.*, *Carlisle*), unfavorable precedents showing risks (*Chambers*, *Stanton*, *Springer*), and significant gaps in published authority where textual and constitutional arguments remain available (workplace interrogations, "volunteering" false information, text message evidence).

Most favorable precedents for suppression: Federal courts in Kentucky have suppressed statements when officers told suspects they were "not under arrest" and conversations were "just talking" (*Hoyer*), Kentucky Supreme Court created a presumption of unconstitutionality for fabricated evidence (*Gray*),

defendants have a right to present polygraph evidence when told they "failed" led to confession (*Rogers*), valuation challenges require Commonwealth to prove value of items actually possessed at time of receipt (*Reed*, *D.L.*), and receiving stolen property is a single offense protecting against double jeopardy (*Cooley*).

The documented pattern of Kentucky State Police misconduct—false testimony under oath with minimal discipline, supervisory complicity in cover-ups, retaliation arrests for exercising constitutional rights, and evidence destruction—provides critical context for challenging officer credibility and demonstrating institutional tolerance for coercive tactics. When officers from agencies with documented patterns of dishonesty testify about what was said during interrogations, their credibility and the voluntariness of any statements must be rigorously challenged using both the legal precedents and the factual record of systemic misconduct.